

Anamika vs Harish Kumar on 19 September, 2023

Author: Arvind Singh Sangwan

Bench: Arvind Singh Sangwan

Neutral Citation No:=2023:PHHC:1227

TA-1215-2023

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2023:PHHC:122731

IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH

TA-1215-2023 (O&M)
Date of decision: 19.09.2023

Anamika

....Petitioner

Vs.

Harish Kumar

....Respondent

CORAM: HON'BLE MR. JUSTICE ARVIND SINGH SANGWAN

Present: Mr. Sanchit Choudhary, Advocate
for the petitioner.

ARVIND SINGH SANGWAN, J. (Oral)

Prayer in this petition is for transfer of the petition filed by the respondent-husband under Section 13(1)(ia)(ib) of the Hindu Marriage Act, pending before the Family Court, Gurugram to the competent Court of jurisdiction at Fatehabad.

Learned counsel for the petitioner has argued that on account of matrimonial discord, the petitioner has filed a petition under Section 125 Cr.P.C., a complaint under the Protection of Women from Domestic Violence Act, 2005 and an FIR under Sections 498-A, 406, 323, 506 IPC at Fatehabad. It is further submitted that the petitioner is facing great difficulty in prosecuting the petition filed by

the respondent, as there is a distance of about 180 kms between Fatehabad and Gurugram.

1 of 5 Neutral Citation No:=2023:PHHC:122731 2023:PHHC:122731 Learned counsel has relied upon the judgments Sumita Singh Vs. Kumar Sanjay, 2002 SC 396 and Rajani Kishor Pardeshi Vs. Kishor Babulal Pardeshi, 2005(12) SCC 237, wherein the Hon'ble Supreme Court observed that while deciding the transfer application, the Courts are required to give more weightage and consideration to the convenience of the female litigants and transfer of legal proceedings from one Court to another should ordinarily be allowed, taking into consideration their convenience and the Courts should desist from putting female litigants under undue hardships."

Learned counsel has further relied upon N.C.V. Aishwarya Vs. A.S. Saravana Karthik Sha, 2022 Live Law (SC) 627, wherein the Hon'ble Supreme Court held as under: -

"The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing

2 of 5 Neutral Citation No:=2023:PHHC:122731 2023:PHHC:122731 socioeconomic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer.

Further, when two or more proceedings are pending in different Courts between the same parties which raise common question of fact and law, and when the decisions in the cases are interdependent, it is desirable that they should be tried together by the same Judge so as to avoid multiplicity in trial of the same issues and conflict of decisions." It is well settled that while considering the transfer of a matrimonial dispute/case at the instance of the wife, the Court is to consider family condition of the wife, custody of the minor child, economic condition of the wife, her physical health and earning capacity of the husband and most important, convenience of the wife i.e. she cannot travel alone without assistance of a male member of her family, connectivity of the place to and fro from her place of residence as well as bearing of the litigation charges and travelling expenses.

After hearing the counsel for the petitioner, considering the fact that issuance of notice to the respondent has the consequences of staying further proceedings before the trial Court, otherwise the petitioner-wife will have to bear the litigation expenses and transportation expenses and in view of the fact that even in case notice of motion is issued, even the respondent/husband has to bear the litigation expenses and in view of the 3 of 5 Neutral Citation No:=2023:PHHC:122731 2023:PHHC:122731 judgments in Sumita Singh's case (supra), Rajani Kishor Pardeshi's case (supra) and N.C.V. Aishwarya's case (supra) passed by the Hon'ble Supreme Court, this Court deem it

appropriate to allow the present petition, subject to the following conditions:-

1. The petition filed under Section 13(1)(ia)(ib) of the Hindu Marriage Act, pending before the Family Court, Gurugram will be transferred to the competent Court of jurisdiction at Fatehabad.
2. The District Judge, Fatehabad will assign the said petition to the competent Court of jurisdiction.
3. The Family Court, Gurugram is directed to transfer all the record pertaining to the aforesaid case(s) to District Judge, Fatehabad.
4. The parties are directed to appear before the Family Court, Fatehabad within a period of 01 month from today.
5. The Family Court, Fatehabad will make all the endeavour to refer the case before the Mediation and Conciliation Centre for exploring the possibility of amicable settlement between the parties.
6. The Court concerned, where the litigations between the parties are pending, will accommodate them with one date in one calendar month.

However, liberty is granted to the respondent to revive this petition, if he intent to contest the same, provided that:-

(a) The respondent will clear all arrears of maintenance amount, if any, in terms of a petition filed by the petitioner either under Section 125 Cr.P.C. or Section 12 of the Domestic Violence Act or Section 24 of the Hindu Marriage Act.

(b) The respondent will file an affidavit giving undertaking to pay

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(c) The respondent will bring a demand draft of Rs.25,000/- towards the litigation expenses of the petitioner to pursue the case at Gurugram, in case the respondent opt to contest this petition.

Present petition is disposed of accordingly.

[ARVIND SINGH SANGWAN]
JUDGE

19.09.2023
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Whether speaking/reasoned : Yes/No

Whether reportable: Yes/No

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